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CASE #	CASE NAME	HEARING NAME
CVRI2404965	VALDEZ VS AMAZON.COM	MOTION TO COMPEL DEFENDANT AMAZON.COM TO RESPOND TO PLAINTIFF'S FORM INTERROGATORIES AND SPECIAL INTERROGATORIES AND REQUEST FOR MONETARY SANCTIONS TOTALING \$2,250.00 BY GEORGE VALDEZ

Tentative Ruling:

Moving party: Plaintiff George Valdez

Responding party: Defendant Amazon.com, Inc.

Plaintiff George Valdez alleges that on 9/14/22, Plaintiff was at the Amazon Fulfillment Center in Perris, when a driver operated a pallet jack without being able to see over the load he was carrying knocked him over. On 9/5/24, Plaintiff filed his complaint for: (1) premises liability and (2) general negligence. Trial is set for 9/18/26.

Plaintiff moves to compel initial responses to form and special interrogatories, propounded on 9/12/25. After several extensions, Defendant provided responses on 2/11/26 that were not verified. Plaintiff requests sanctions of \$2,250.00.

In a limited opposition, Defendant asserts that the case has been reassigned to new attorneys. It asserts it will serve written responses by 7/31/26 and has produced documents. It argues that there is no basis for sanctions as there was difficulty in obtaining the information.

In reply, Plaintiff contends that the opposition was not properly served on counsel. He contends that there are still no verified responses, and the motion should be granted. He argues that there is no substantial justification and sanctions are still proper.

Analysis

Code of Civil Procedure sections 2030.290(b) and 2031.300(b) allow the propounding party to file a motion to compel responses to interrogatories and document demands if a response has not been received. If responses are untimely, responding party waives objections. (*Id.* at §§ 2030.290(a), 2031.300(a).)

Defendant indicates that it will provide responses before the hearing. If Defendant did serve supplemental responses, the motion is moot.

If Defendant did not serve supplemental responses, the motion is more complicated. Plaintiff received responses but contends that they are not verified. An unverified response is ineffective as it is the equivalent of providing no response at all. (*Appleton v. Superior Court* (1988) 206 Cal.App.3d 632, 636 (applying to requests for admissions).) The problem is that Defendant's responses to special interrogatories were only objections. For form interrogatories, Defendant answered no. 1.1 (name and contact of person who prepared the responses). Otherwise, Defendant just objected to all the responses.

Verifications are not required for objection only responses. (See Code Civ. Proc., § 2030.250.) Plaintiff's remedy was to file a motion to compel further responses—not a motion to compel. The motion is denied as to special interrogatories but granted as to the form interrogatories with responses due within 10 days of this order.

As for sanctions, due to the fact that Plaintiff filed the wrong motion as to one, no sanctions are warranted.